Transport Planning, Development & Streetworks Management
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Transport Development Management

Memo

To: Planning Services
From: Transport Development Management
Date: 2nd December 2022

Application Number: S/COND/22/0879

Proposal: Discharge of condition 36 (Construction Method Statement) for Haul Road including partial discharge of conditions 13 (Tree Protection), 17 (Bats), 37 (Construction and Environmental Management Plan), 53 (Slab Levels) and 54 (Materials) following outline permission S/OUT/13/1555.

Location: Land North Of A420 Eastern Villages

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Condition 36: Construction Method Statement

Prior to the commencement of works of any development on any sub-phase hereby permitted, including site clearance, a Construction Method Statement for that sub-phase of development shall be submitted to and approved in writing by the Local Planning Authority. Once agreed, such mitigation measures approved prior to the commencement of construction shall be implemented prior to the commencement of any construction on the sub-phase and shall be adhered to throughout the construction period of that phase. The Construction Method Statement shall provide:

i. details of the number and frequency of construction vehicle movements and contact details for site manager; Details of the number and frequency of construction vehicles have been included at Section 2.3.1 of the CEMPMS Details of the Site Manager are missing from the contacts section at 1.3.1. Contact details of a responsible officer have been given until details of the Site Manager are available. Details of the Site Manager are required as soon as they are available, this part of the condition can be complied with.

ii. secure vehicle logs, including registrations and time of arrival/departure; A blank Vehicle Log has been included within the CEMPMS with a commitment that it will be completed by the Site Manager and submitted to SBC. The information is sufficient to comply with this part of the condition.

iii. for the loading, unloading and storage of plant and materials, including swept paths of vehicle movements within the site; Appendix 1 now includes the Site Set Up and Compound Plan, the details are acceptable. However, the swept path of the Haul Road does not include clearance between vehicles for the whole length, there is scope for the Site Manager to control this on site. But if the Haul Road is to become the Primary Street, there are areas that will require design amendments for the road to be suitable to serve the residential dwellings including provision for a bus service. These comments still stand, see additional comments below.

iv. a device for removing debris from the highway to ensure the highway is clear at all times and is on 24 hour call out (excluding those days where construction is not permitted); Section 2.2.4 of the CEMPMS states that the Site Manager will monitor site roads and Thornhill Road and arrange road sweeps when necessary. The section continues that the public will be able to report mud on the road 24 hours a day, via a phone number displayed on a site board, and the road sweeping contractor will be on 24hr call out. The details submitted are sufficient to comply with this part of the condition.

v. construction vehicle routes to and from and within the site with distance details; The first illustration and depicts a Haul Route through the site with an annotation box describing access, the route from the A419 is clear, the route from the east via A420 /A34 has now been clarified with traffic directed to Gablecross Roundabout and Thornhill Road. Description of routes through the site and a Swept Path (discussed above) have been submitted to detail the routes through the site. The details are sufficient to comply with this part of the condition.

vi. temporary access details and parking area for site operatives and construction traffic, parking of vehicles of site operatives and visitors; Details have been revised to provide two larger compounds with parking for 40 cars, with the Thornhill Road compound being provided first while the Haul Road is constructed. The OVL compound will be provided later. Appendix 1 has been amended to reflect the left in and right out movements. Additional signage reinforces no construction traffic via OVL. The details are sufficient to comply with this part of the condition.

vii. location and details of buildings, enclosures and staff facilities; Appendix 1 has been updated to set out where and how the welfare requirements will be provided. The information submitted is sufficient to comply with this part of the condition.

viii. specific measures to be adopted to mitigate construction impacts (including infrastructure improvements if appropriate); Details have been provided in the form of a pre and post road condition survey. Along with the control of delivery hours the details are sufficient to comply with this part of the condition.

ix. details of a procedure for wheel washing and/or vehicle wash down of all site construction traffic leaving any of the construction sites; A drive through wheel wash is proposed, the submitted details are acceptable for the Thornhill Road end, reference to a wheel wash at the OVL end have now been removed. The details are sufficient to comply with this part of the condition.

x. details of petrol and oil interceptors to be provided; Section 3.1 sets out some details, please ensure with our LLFA and Environmental colleagues whether this is acceptable.

xi. a method statement for the control of noise, vibrations and air pollution, including pile driving (in accordance with BS: 5228), dust, smoke, fumes and debris during construction; Please refer to our Environmental colleagues.

xii. a Construction Workers' Travel Plan; The CWTP is 3 paragraphs at section 2.3.5 that have been amended to encourage workers to vehicle share, use public transport, walk or cycle where possible. The amendments now include a guaranteed lift home in the event of an emergency regardless of means of arrival to site. The information submitted is sufficient to comply with this part of the condition.

xiii. a Traffic Management Plan to control traffic during the construction phases; The Site Set Up and Compound Plan has been included in Appendix 1, a Traffic Management Plan has also now been included. The details are sufficient to comply with this part of the condition.

xiv. details to maintain access to the adjacent site/land. The revised details in Sections 2.3.1, 2.3.3 and 2.3.4 are sufficient to comply with this part of the condition.

xv. strategy outlining the hours for construction works and delivery including the waiting of vehicles undertaking deliveries and collections during the construction phases. The strategy shall also identify measures to ensure ongoing engagement with the local community. The standard hours of construction works and delivery are;

o 0730 to 1830 Monday to Friday;

o 0830 to 1300 Saturdays; and

o Not at all on Sundays, Bank Holidays and Public Holidays. The CEMPMS has been updated to solely reflect these operating hours, with deliveries scheduled for a time when the site is ready to accept deliveries. The condition requires details of ongoing engagement with the local community, the details at 2.1.3 now includes letter drops at key milestones and after a complaint has been received from the public. The information submitted is sufficient to comply with this part of the condition.

Reason: To reduce the potential impact on the public highway and residential amenity during the site preparation and construction phase(s) of development.

The document on Public Access titled 'Access Routes' relates to TPOs and not access routes.

1.2.3 Key Dates state Start date has been amended to January 2023, although this is currently very ambitious as the S278 submission has not been proceeded due to lack of progress on a number of issues.

2.1.1 *How will the security measures coordinate with early provision of a bus service?* The response given by the developer is that 'the haul road is for construction traffic so not relevant to bus service at this time'. Buses are required to be provided with occupation of dwellings and it appears, based on current information, that the haul road will remain in place after first occupations, therefore, how will the security measures coordinate with early provision of a bus service. This also ties in with the comments in the last paragraph of Section 2.3.2 which now state: *Once the haul road has been established, this will be utilised by all construction vehicles accessing future packages of infrastructure works procured by the Consortium, until a new permanent spine road has been constructed in a separate infrastructure package.* As stated previously, this is acceptable in principle. However, as stated above, the alignment is only just suitable for a haul road. The largest construction related vehicle subject to a Swept Path Analysis is 2m shorter than the minimum length for a bus, and on site management appears to be required for the construction vehicles to negotiate parts of the haul road, this is not acceptable for a Primary Street supporting a bus service.
The most recent response from the applicant states 'that the haul route will not be used by buses and the RMA for the Primary street is the appropriate application to consider bus tracking. However drawing no. 1335-HR-104 has been prepared to demonstrate tracking for a 12m long bus'. I therefore repeat: The haul road is acceptable as a haul road, but not as a Primary Street supporting a bus service.
Drawing numbered 1335-HR-104 only illustrates a bus travelling east and a car travelling west with minimal clearance at the sharp bend. This demonstrates that the primary street would not be able to support a two-way bus service and a bus would not be able to pass a vehicle larger than a car at this point. If these details are submitted as part of the RMA, the LHA would be unable to support the proposals. It would be easier and cheaper for the developer to resolve these issues now, rather than undertake additional works to correct the alignment of the haul road to provide a Primary Street that is safe and suitable for all.
NB. SBC would not accept additional surfacing being tacked on to the edge of the haul road to widen/amend the bend (if this is required), this would cause the same structural instabilities as trenching for utilities. Albeit that the utility issue now appears to be resolved.

Some information has been provided with regards the provision of utilities, however, details of these have not been forthcoming. A draft utility drawing has been included with this submission, detailing the ducting routes. The comments tracker expands further stating that *'Provisional duct crossings will be included under the haul route to allow future service crossing to supply the northern parcels. All utilities will sit outside of the haul route corridor when the Primary Street is brought forward and will sit within the service margin or footway/cycleway'.* This will avoid trenching through the substructure of the road, meaning that is would be possible for it to be adopted as part of the Primary Street. It is recommended that SBCs Clerk of Works/Inspector is present when the road is laid.

In the event that the haul road is to be used as the Primary Street, the following details need to be appropriately addressed:

- Demonstration of suitable alignment for use as a haul road and as a Primary Street
    - Swept Path Analysis and Forward Visibility Splays for both the Haul Road and the Primary Street. See comments above regarding the SPA. It is unclear why 17m visibility splays, suitable for 15mph, have been illustrated when this route will have a Posted Speed Limit of 30mph. Some of the bends will not achieve such a speed reduction. Whilst this is less of an issue for the haul road, as a site speed limit will apply, this is a serious concern for the alignment of the Primary Street.
    - RSA and WCHAR for the Primary Street. Noted.
- Details of Utility Provision, including Inspection Chambers and ducts where required to accommodate crossings. See comments above.
- Details of a thicker sacrificial binder course. Suggest and additional 50mm to enable the sacrificial course to be planed off and the final surface course to be laid. This will protect the structural integrity of the lower courses and also assist in reducing raised ironworks on site.

- Construction details can only be approved by SBC via S38 agreement. The Construction details shown for the haul road are considered sacrificial and at the developer's own risk until such time as Technical Approval is issued.

Based on the information so far submitted, the haul road is just acceptable as a haul road with on site management, but insufficient detail has been provided to support the haul road being converted to the Primary Street. In the event that an application for the Primary Street was submitted with the same details, a recommendation for refusal on lack of safe provision for all would be likely forthcoming. However, more details and some realignment would overcome the issues highlighted and avoid abortive works.

Partial Discharge of Condition is requested for Conditions 37 CEMP, 13 Tree Protection, 17 Bats, 53 Slab Levels and 54 Materials.

Condition 37: CEMP

No highway comments are made.

Condition 13: Tree Protection

No highway comments are made.

Condition 17: Bats

No highway comments are made.

Condition 53: Slab Levels

Notwithstanding any plans to the contrary, and prior to the commencement of the development of each sub-phase, the full details of the existing and proposed site levels, together with the finished floor slab levels of any buildings (including roads, bridges, footpaths and other structures) for that sub-phase shall be submitted to and approved in writing by the Local Planning Authority. Development shall be carried out in accordance with the approved details. Reason: To ensure that the finished floor slab levels details and heights of development are satisfactory.

Compound slab level detail noted.

Condition 54: Materials

No highway comments are made.

Please note that the comments made here represent Officer Opinion and cannot be seen to prejudice Swindon Borough Council's formal determination in relation to any application or planning matter.

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